

Stereo HCJDA 38.
Judgment Sheet
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Revision No.22730 of 2017

Abdul Jabbar and three others
versus
The State and another

J U D G M E N T

Date of hearing:	<u>01.10.2021</u>
Petitioners by:	Mr. Muhammad Rafique Zahid, Advocate.
State by:	Ms. Nuzhat Bashir, Deputy Prosecutor General alongwith Tassaduq A.S.I.
Complainant by:	Mr. Adnan Abbas Gujjar, Advocate alongwith Muhammad Akram (complainant of case).

FAROOQ HAIDER, J.:- Petitioners i.e. Abdul Jabbar, Muhammad Mansha, Irshad Bibi *alias* Shehnaz Bano and Muhammad Akram were tried in case arising out of F.I.R. No.317/2014 dated: 29.07.2014 registered under Sections: 420, 468, 471 PPC at Police Station: Changa Manga, District: Kasur and learned Judl. Magistrate Ist Class, Chunian (trial court) *vide* judgment dated: 17.02.2015, convicted and sentenced them as under:-

<u>Conviction</u>	<u>Sentence</u>
<u>Under Section:</u> 420 PPC	“Rigorous Imprisonment for 03 years” each with fine of Rs.10,000/- each and in default thereof to further undergo two months Simple Imprisonment each.

Against aforementioned conviction and sentence, petitioners filed Criminal Appeal No.07/2016 before learned Addl. Sessions Judge, Chunian and the same to the extent of Abdul Jabbar, Muhammad Mansha and Muhammad Akram (petitioners) was dismissed, however, to the extent of Irshad Bibi *alias* Shehnaz Bano was partly allowed/ accepted (in terms that her conviction *qua* offence under Section: 420 PPC was maintained, however, sentence awarded to her by learned trial

court was reduced from three years to two years) by the learned Additional Sessions Judge, Chunian (Appellate Court) *vide* impugned judgment dated: 25.04.2017 and resultantly conviction awarded to the petitioners by learned trial court was upheld.

2. Feeling aggrieved, petitioners filed instant criminal revision before this Court wherein notice was issued to the State as well as respondent No.2/complainant of case and sentence of the petitioners was suspended by this Court *vide* order dated: 05.05.2017.

3. An affidavit (now Marked as “**Mark-A**”) sworn by Muhammad Akram (respondent No.2/complainant of case) is available on record of instant petition, wherein he has mentioned that in presence of Muhammad Ayub and Ahmad Deen (prosecution witnesses), he has forgiven the petitioners/convicts in the name of Almighty Allah.

4. Learned counsel for the petitioners submits that compromise has been effected between the petitioners/convicts and complainant of case and requests for acceptance of this criminal revision and acquittal of the petitioners.

5. Learned counsel for the complainant while confirming the aforementioned facts submits that Muhammad Akram (complainant) has effected compromise with the petitioners/ convicts, therefore, he has no objection on acceptance of instant petition and acquittal of the petitioners.

6. Muhammad Akram complainant (present in person, duly identified by his learned counsel as well as aforementioned police official) while verifying contents of his aforementioned affidavit (Mark-A) submits that he has entered into compromise with the petitioners, with his own free will; further submits that he has forgiven the petitioners in the name of Allah Almighty without any duress or coercion and has no objection on acceptance of instant revision petition and acquittal of the petitioners.

7. Learned Deputy Prosecutor General has submitted that since offence under Section: 420 PPC is compoundable with the permission of this Court and parties have entered into compromise, therefore, she has no objection on acceptance of instant petition and acquittal of petitioners/convicts in this case on the basis of compromise.

8. Perusal of Section: 345 Cr.P.C. reveals that offence under Section: 420 PPC can be compounded with the permission of Court by “the person cheated”. Learned counsel for the parties and learned Deputy Prosecutor General are not at variance for sanctioning the approval to the compromise reached between the petitioners and Muhammad Akram (complainant). The above referred statement of the complainant before this Court and his affidavit (mentioned above) reflect that the compromise between the petitioners and the complainant is genuine and they have arrived at a compromise with their free will and without any duress or coercion. However, since complainant is not the only aggrieved person i.e. “the person cheated” rather other persons are also statedly aggrieved i.e. “the persons cheated”, who have not effected compromise with the petitioners, therefore, this compromise is partial in nature and cannot be taken into consideration for acquittal; in this regard, guidance has been sought from the case of “**Zahid Rehman versus The State**” (PLD 2015 Supreme Court 77), “**Abdul Ghaffar and others versus The State**” (2015 SCMR 1064) and “**Muhammad Amin versus The State**” (2016 SCMR 116). Therefore, this revision petition is being decided on merits.

9. **Arguments heard, available record perused.**

10. Briefly, case of prosecution as per F.I.R. (Ex.PH) is that Abdul Jabbar, Muhammad Mansha, Irshad Bibi *alias* Shehnaz Bano and Muhammad Akram (present petitioners) told to the complainant, Muhammad Ayub and Ahmad Din (witnesses) and housemate of the complainant that they have made an institution namely Fidelity International Funds for paying Rs.50000/- for the daughter’s marriage, for children school fee and for medical treatment; further told that for obtaining said amount, Rs.15000/- have to be deposited as advance; when complainant and other persons asked for payment of aforesaid promised amount, then they issued “Form” (فارم) and told that their team would come and deliver the amount at home, however, subsequently nothing was paid to effectees.

11. Petitioners faced trial and were acquitted of the charge to the extent of offence under Sections: 468, 471 PPC, however, convicted and sentenced under Section: 420 PPC (as detailed above) by the learned

trial court; petitioners filed appeal and same was dismissed, however, sentence to the extent of Irshad Bibi *alias* Shehnaz Bano was reduced (as detailed above) by the learned Additional Sessions Judge, Chunian (Appellate Court).

12. Learned Deputy Prosecutor General and learned counsel for the complainant have confirmed the fact that aforementioned acquittal of the petitioners under Section: 468, 471 PPC (as mentioned above) has neither been challenged by the State nor by the complainant, same is still intact and holding the field.

13. Now moot point involved in the case is that when charge under Sections: 468, 471 PPC has not been proved against the petitioners, then either in peculiar facts and circumstances of the case, petitioners can be convicted and sentenced under Section: 420 PPC? For ready reference, Sections: 420, 468 and 471 PPC are reproduced hereunder: -

“**420.** Cheating and dishonestly inducing delivery of property. Whoever cheats and thereby dishonestly induces the person deceived to deliver any property to any person, or to make, alter or destroy the whole or any part of a valuable security, or anything which is signed or sealed, and which is capable of being converted into a valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.”

“**468.** Forgery for purpose of cheating. Whoever commits forgery, intending that the document forged shall be used for the purpose of cheating, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.”

“**471.** Using as genuine a forged document. Whoever fraudulently or dishonestly uses as genuine any document which he knows or has reason to believe to be a forged document, shall be punished in the same manner as if he had forged such document.”

It goes without saying that charge under Section: 468, 471 PPC, has not been proved, meaning thereby that forgery for the purpose of cheating and using forged document as genuine by the petitioners, has not been proved in the case. Admittedly, any receipt containing signatures of petitioners showing receiving of alleged amount from any affected person by the petitioners has not been produced by the prosecution; any Form "فارم" issued to the complainant has not been produced; publications/advertisements as well as letter/Form containing

“Congratulations” were produced by the complainant to police and not recovered from possession of petitioners; it has not been got duly proved by the prosecution that any writing or signature on the aforementioned letters/forms was of any petitioner; furthermore, it was not proved by the prosecution that said documents were forged, fake, bogus or falsely prepared by the petitioners; nothing incriminating has been recovered from the petitioners.

So, when receiving of any amount/valuable security/property or anything by the petitioners through cheating and dishonest inducement from the complainant or anyone else has not been proved, then basic ingredients/elements constituting offence under Section: 420 PPC are missing in the case. Hence, prosecution has been failed to prove charge under Section: 420 PPC against the petitioners beyond shadow of doubt. It is trite law that in such state of affairs there is no need to discuss defence version.

In view of what has been discussed above, instant criminal revision petition is **accepted**, as a result whereof, impugned judgment dated: 17.02.2015 passed by learned Judl. Magistrate Ist Class, Chunian/trial court whereby petitioners were convicted and sentenced (as mentioned above) and impugned judgment dated: 25.04.2017 passed by learned Addl. Sessions Judge, Chunian/Appellate Court whereby conviction and sentence recorded against Abdul Jabbar, Muhammad Mansha and Muhammad Akram were upheld whereas conviction recorded against Irshad Bibi *alias* Shehnaz Bano was upheld, however, her sentence was reduced (as mentioned above) are set-aside. Petitioners are acquitted of the charge; they are on bail, as during pendency of this revision petition, their sentence was suspended by this Court, therefore, their sureties stand discharged from their all liabilities.

(Farooq Haider)
Judge

APPROVED FOR REPORTING.

(Farooq Haider)
Judge